

**SUBSTITUTE FOR
HOUSE BILL NO. 5983**

A bill to amend 1976 PA 451, entitled
"The revised school code,"
by amending sections 1278a, 1278b, and 1284a (MCL 380.1278a,
380.1278b, and 380.1284a), sections 1278a and 1278b as amended by
2022 PA 105 and section 1284a as added by 2007 PA 101, and by
adding section 1278e.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 Sec. 1278a. (1) Except as otherwise provided in this section,
2 ~~or~~ section 1278b, **or section 1278e**, the board of a school district
3 or board of directors of a public school academy shall not award a
4 high school diploma to a pupil unless the pupil meets all of the
5 following:

6 (a) Has successfully completed all of the following credit



1 requirements of the Michigan merit standard before graduating from
2 high school:

3 (i) At least 4 credits in mathematics that are aligned with
4 subject area content expectations developed by the department and
5 approved by the state board under section 1278b, including
6 completion of at least algebra I, geometry, and algebra II, or an
7 integrated sequence of this course content that consists of 3
8 credits, and an additional mathematics credit, such as
9 trigonometry, statistics, precalculus, calculus, applied math,
10 accounting, business math, a retake of algebra II, or, for only
11 pupils entering grade 8 before 2023, a course in financial literacy
12 as described in section 1165. A pupil may complete algebra II over
13 2 years with 2 credits awarded or over 1.5 years with 1.5 credits
14 awarded for the purposes of this section and section 1278b. A pupil
15 also may partially or fully fulfill the algebra II requirement by
16 completing a department-approved formal career and technical
17 education program or curriculum, such as a program or curriculum in
18 electronics, machining, construction, welding, engineering,
19 computer science, or renewable energy, and in that program or
20 curriculum successfully completing the same content as the algebra
21 II benchmarks assessed on the department-prescribed state high
22 school assessment, as determined by the department. The department
23 shall post on its website guidelines for implementation of the
24 immediately preceding sentence. Each pupil must successfully
25 complete at least 1 mathematics course during ~~his or her~~ **the**
26 **pupil's** final year of high school enrollment. This subparagraph
27 does not require completion of mathematics courses in any
28 particular sequence.

29 (ii) At least 3 credits in social science that are aligned with



1 subject area content expectations developed by the department and
2 approved by the state board under section 1278b, including
3 completion of at least 1 credit in United States history and
4 geography, 1 credit in world history and geography, 1/2 credit in
5 economics, and the civics course described in section 1166(2). For
6 only pupils entering grade 8 before 2023, the 1/2-credit economics
7 requirement may be satisfied by completion of at least a 1/2-credit
8 course in personal economics that includes a financial literacy
9 component as described in section 1165, if that course covers the
10 subject area content expectations for economics developed by the
11 department and approved by the state board under section 1278b. The
12 1/2 credit in economics required under this subparagraph cannot be
13 fulfilled by completion of the 1/2 credit course in personal
14 finance described in subsection (3).

15 (iii) At least 1 credit in subject matter that includes both
16 health and physical education aligned with guidelines developed by
17 the department and approved by the state board under section 1278b,
18 or at least 1/2 credit in health aligned with guidelines developed
19 by the department and approved by the state board under section
20 1278b and at least 1/2 credit awarded by the school district or
21 public school academy for approved participation in extracurricular
22 athletics or other extracurricular activities involving physical
23 activity.

24 (iv) At least 1 credit in visual arts, performing arts, or
25 applied arts, as defined by the department, that is aligned with
26 guidelines developed by the department and approved by the state
27 board under section 1278b. A school district or public school
28 academy is strongly encouraged to offer visual arts and performing
29 arts courses.



1 (v) The credit requirements specified in section 1278b(1).

2 (b) Meets the online course or learning experience requirement
3 of this subsection. A school district or public school academy
4 shall provide the basic level of technology and internet access
5 required by the state board to complete the online course or
6 learning experience. For a pupil to meet this requirement, the
7 pupil must meet either of the following, as determined by the
8 school district or public school academy:

9 (i) Has successfully completed at least 1 course or learning
10 experience that is presented online, as defined by the department.

11 (ii) The pupil's school district or public school academy has
12 integrated an online experience throughout the high school
13 curriculum by ensuring that each teacher of each course that
14 provides the required credits of the Michigan merit curriculum has
15 integrated an online experience into the course.

16 (2) Except as otherwise provided in this section, and in
17 addition to the requirements under subsection (1), the board of a
18 school district or board of directors of a public school academy
19 shall not award a high school diploma to a pupil unless the pupil
20 has successfully completed during grades K to 12 at least 2 credits
21 that are grade-appropriate in a language other than English or
22 ~~course work~~ **coursework** or other learning experiences that are
23 substantially equivalent to 2 credits in a language other than
24 English, based on guidelines developed by the department. A pupil
25 may partially or fully fulfill 1 credit of this requirement by
26 completing a department-approved formal career and technical
27 education program or curriculum or by completing visual or
28 performing arts instruction that is in addition to the requirements
29 under subsection (1)(a)(iv). The board of a school district or board



1 of directors of a public school academy is strongly encouraged to
2 ensure that all pupils complete at least 1 credit in a language
3 other than English in grades K to 6. For the purposes of this
4 subsection, both of the following apply:

5 (a) American Sign Language is considered to be a language
6 other than English.

7 (b) The pupil may meet all or part of this requirement with
8 online ~~course work~~. **coursework**.

9 (3) Beginning with pupils entering grade 8 in 2023, the board
10 of a school district or board of directors of a public school
11 academy shall not award a high school diploma to a pupil unless the
12 pupil completes a 1/2 credit course in personal finance that aligns
13 with subject area content expectations developed by the department
14 and approved by the state board under section 1278b. The 1/2 credit
15 course in personal finance must fulfill 1/2 credit of mathematics
16 required under subsection (1)(a)(i), 1/2 credit of visual arts,
17 performing arts, or applied arts required under subsection
18 (1)(a)(iv), or 1/2 credit of a language other than English required
19 under subsection (2), as determined by the board of the school
20 district or board of directors of the public school academy in
21 which the pupil is enrolled. The 1/2 credit course in personal
22 finance required under this subsection may be fulfilled through a
23 department-approved formal career and technical education program
24 or curriculum that aligns with the subject area content
25 expectations developed by the department and approved by the state
26 board for the credit under section 1278b.

27 (4) The requirements under this section and section 1278b for
28 a high school diploma are in addition to any local requirements
29 imposed by the board of a school district or board of directors of



1 a public school academy. The board of a school district or board of
2 directors of a public school academy, as a local requirement for a
3 high school diploma, may require a pupil to complete the Michigan
4 merit examination under section 1279g or may require a pupil to
5 participate in the MIAccess assessments if appropriate for the
6 pupil.

7 (5) For the purposes of this section and section 1278b, all of
8 the following apply:

9 (a) A pupil is considered to have completed a credit if the
10 pupil successfully completes the subject area content expectations
11 or guidelines developed by the department that apply to the credit.
12 For a career and technical education credit, a school district or
13 public school academy may supplement those content expectations and
14 guidelines with additional guidelines developed by the school
15 district or public school academy.

16 (b) A school district or public school academy shall base its
17 determination of whether a pupil has successfully completed the
18 subject area content expectations or guidelines developed by the
19 department that apply to a credit at least in part on the pupil's
20 performance on assessments developed or selected by the department
21 or on 1 or more assessments developed or selected by the school
22 district or public school academy that measure a pupil's
23 understanding of the subject area content expectations or
24 guidelines that apply to the credit.

25 (c) A school district or public school academy shall also
26 grant a pupil a credit if the pupil earns a qualifying score, as
27 determined by the department, on assessments developed or selected
28 for the subject area by the department or the pupil earns a
29 qualifying score, as determined by the school district or public



1 school academy, on 1 or more assessments developed or selected by
2 the school district or public school academy that measure a pupil's
3 understanding of the subject area content expectations or
4 guidelines that apply to the credit.

5 (6) If a high school is designated by the superintendent of
6 public instruction as a specialty school and the high school meets
7 the requirements of subsection (7), the pupils of the high school
8 are not required to successfully complete the 4 credits in English
9 language arts required under section 1278b(1)(a) or the 3 credits
10 in social science required under subsection (1)(a)(ii) and the
11 school district or public school academy is not required to ensure
12 that each pupil is offered the curriculum necessary for meeting
13 those English language arts or social science credit requirements.
14 The superintendent of public instruction may designate up to 15
15 high schools that meet the requirements of this subsection as
16 specialty schools. Subject to this maximum number, the
17 superintendent of public instruction shall designate a high school
18 as a specialty school if the superintendent of public instruction
19 finds that the high school meets all of the following criteria:

20 (a) The high school incorporates a significant reading and
21 writing component throughout its curriculum.

22 (b) The high school uses a specialized, innovative, and
23 rigorous curriculum in such areas as performing arts, foreign
24 language, extensive use of internships, or other learning
25 innovations that conform to pioneering innovations among other
26 leading national or international high schools.

27 (7) A high school that is designated by the superintendent of
28 public instruction as a specialty school under subsection (6) is
29 only exempt from requirements as described under subsection (6) as



1 long as the superintendent of public instruction finds that the
2 high school continues to meet all of the following requirements:

3 (a) The high school clearly states to prospective pupils and
4 ~~their~~**the prospective pupils'** parents that it does not meet the
5 requirements of the Michigan merit standard under this section and
6 section 1278b but is a designated specialty school that is exempt
7 from some of those requirements and that a pupil who enrolls in the
8 high school and subsequently transfers to a high school that is not
9 a specialty school meeting the requirements of this subsection will
10 be required to comply with the requirements of the Michigan merit
11 standard under this section and section 1278b.

12 (b) For the most recent year for which the data are available,
13 the mean scores on both the mathematics and science portions of the
14 applicable state assessment for the pupils of the high school
15 exceed by at least 10% the mean scores on the mathematics and
16 science portions of the applicable state assessment for the pupils
17 of the school district in which the greatest number of the pupils
18 of the high school reside.

19 (c) For the most recent year for which the data are available,
20 the high school had a graduation rate of at least 85%, as
21 determined by the department.

22 (d) For the most recent year for which the data are available,
23 at least 75% of the pupils who graduated from the high school the
24 preceding year are enrolled in a postsecondary institution.

25 (e) All pupils of the high school are required to meet the
26 mathematics credit requirements of subsection (1)(a)(i), with no
27 modification of these requirements under section 1278b(5), and each
28 pupil is offered the curriculum necessary to meet this requirement.

29 (f) All pupils of the high school are required to meet the



1 science credit requirements of section 1278b(1)(b) and are also
2 required to successfully complete at least 1 additional science
3 credit, for a total of at least 4 science credits, with no
4 modification of these requirements under section 1278b(5), and each
5 pupil is offered the curriculum necessary to meet this requirement.

6 **(8) For a public innovative program operated under section**
7 **1278e, the department may waive any of the requirements of this**
8 **section as the department determines necessary to enable the**
9 **operation of the public innovative program.**

10 Sec. 1278b. (1) Except as otherwise provided in this section,
11 ~~or~~ section 1278a, **or section 1278e**, as part of the requirements
12 under section 1278a the board of a school district or board of
13 directors of a public school academy shall not award a high school
14 diploma to a pupil unless the pupil has successfully completed all
15 of the following credit requirements of the Michigan merit standard
16 before graduating from high school:

17 (a) At least 4 credits in English language arts that are
18 aligned with subject area content expectations developed by the
19 department and approved by the state board under this section.

20 (b) At least 3 credits in science that are aligned with
21 subject area content expectations developed by the department and
22 approved by the state board under this section, including
23 completion of at least biology and either chemistry, physics,
24 anatomy, or agricultural science, or successfully completing a
25 program or curriculum that provides the same content as the
26 chemistry or physics benchmarks, as determined by the department. A
27 student may fulfill the requirement for the third science credit by
28 completing a department-approved computer science program or
29 curriculum or formal career and technical education program or



1 curriculum. The legislature strongly encourages pupils to complete
2 a fourth credit in science, such as forensics, astronomy, Earth
3 science, agricultural science, environmental science, geology,
4 physics, chemistry, physiology, or microbiology.

5 (c) The credit requirements specified in section 1278a(1)(a)(i)
6 to (iv).

7 (2) If a pupil successfully completes 1 or more of the high
8 school credits required under subsection (1) or under section
9 1278a(1) or (3) before entering high school, the pupil must be
10 given high school credit for that credit.

11 (3) For the purposes of this section and section 1278a, the
12 department shall do all of the following:

13 (a) Develop subject area content expectations that apply to
14 the credit requirements of the Michigan merit standard that are
15 required under subsection (1)(a) and (b) and section 1278a(1)(a)(i)
16 and (ii) and the 1/2 credit course in personal finance required
17 under section 1278a(3) and develop guidelines for the remaining
18 credit requirements of the Michigan merit standard that are
19 required under this section and section 1278a(1)(a), for the online
20 course or learning experience required under section 1278a(1)(b),
21 and for the requirements for a language other than English under
22 section 1278a(2). All of the following apply to these subject area
23 content expectations and guidelines:

24 (i) All subject area content expectations must be consistent
25 with the state board recommended model core academic curriculum
26 content standards under section 1278. Subject area content
27 expectations or guidelines must not include attitudes, beliefs, or
28 value systems that are not essential in the legal, economic, and
29 social structure of our society and to the personal and social



1 responsibility of citizens of our society. The subject area content
2 expectations must require pupils to demonstrate critical thinking
3 skills.

4 (ii) The subject area content expectations and the guidelines
5 must be approved by the state board under subsection (4).

6 (iii) The subject area content expectations must state in clear
7 and measurable terms what pupils are expected to know upon
8 completion of each credit.

9 (iv) The department shall complete the development of the
10 subject area content expectations that apply to algebra I and the
11 guidelines for the online course or learning experience under
12 section 1278a(1)(b) not later than August 1, 2006.

13 (v) The department shall complete development of the subject
14 area content expectations or guidelines that apply to each of the
15 other credits required in the Michigan merit standard under
16 subsection (1) and section 1278a(1)(a) not later than 1 year before
17 the beginning of the school year in which a pupil entering high
18 school in 2007 would normally be expected to complete the credit.

19 (vi) If the department has not completed development of the
20 subject area content expectations that apply to a particular credit
21 required in the Michigan merit standard under subsection (1) or
22 section 1278a(1)(a) by the date required under this subdivision, a
23 school district or public school academy may align the content of
24 the credit with locally adopted standards.

25 (vii) Until all of the subject area content expectations and
26 guidelines have been developed by the department and approved by
27 the state board, the department shall submit a report at least
28 every 6 months to the senate and house standing committees
29 responsible for education legislation on the status of the



1 development of the subject area content expectations and
2 guidelines. The report must detail any failure by the department to
3 meet a deadline established under subparagraph (iv) or (v) and the
4 reasons for that failure.

5 (b) Develop and implement a process for developing the subject
6 area content expectations and guidelines required under this
7 section. This process must provide for all of the following:

8 (i) Soliciting input from all of the following groups:

9 (A) Recognized experts in the relevant subject areas.

10 (B) Representatives from 4-year colleges or universities,
11 community colleges, and other postsecondary institutions.

12 (C) Teachers, administrators, and school personnel who have
13 specialized knowledge of the subject area.

14 (D) Representatives from the business community.

15 (E) Representatives from vocational and career and technical
16 education providers.

17 (F) Government officials, including officials from the
18 legislature.

19 (G) Parents of public school pupils.

20 (ii) A review of the subject area content expectations or
21 guidelines by national experts.

22 (iii) An opportunity for the public to review and provide input
23 on the proposed subject area content expectations or guidelines
24 before they are submitted to the state board for approval. The time
25 period allowed for this review and input must be at least 15
26 business days.

27 (c) Determine the basic level of technology and internet
28 access required for pupils to complete the online course or
29 learning experience requirement of section 1278a(1)(b), and submit



1 that determination to the state board for approval.

2 (d) Develop and make available material to assist school
3 districts and public school academies in implementing the
4 requirements of this section and section 1278a. This must include
5 developing guidelines for alternative instructional delivery
6 methods as described in subsection (7).

7 (4) The state board shall approve subject area content
8 expectations and guidelines developed by the department under
9 subsection (3) before those subject area content expectations and
10 guidelines may take effect. The state board also shall approve the
11 basic level of technology and internet access required for pupils
12 to complete the online course or learning experience requirement of
13 section 1278a(1)(b).

14 (5) The parent or legal guardian of a pupil who has completed
15 grade 9, a teacher who is currently teaching the pupil, who
16 currently teaches in or whose expertise is in a subject area
17 proposed to be modified by the personal curriculum, or who is
18 determined by the principal to have qualifications otherwise
19 relevant to developing a personal curriculum, or a school counselor
20 or school employee qualified to act in a counseling role under
21 section 1233 or 1233a may request a personal curriculum under this
22 subsection for the pupil that modifies certain of the Michigan
23 merit standard requirements under subsection (1) or section
24 1278a(1)(a). If the request for a personal curriculum is made by
25 the pupil's parent or legal guardian or, if the pupil is at least
26 age 18 or is an emancipated minor, by the pupil, the school
27 district or public school academy shall develop a personal
28 curriculum for the pupil. A teacher, school counselor, or school
29 employee qualified to act in a counseling role under section 1233



1 or 1233a may contact a pupil's parent or legal guardian to discuss
2 the possibility and potential benefits of a personal curriculum
3 under this subsection for the pupil. If all of the requirements
4 under this subsection for completing a personal curriculum are met,
5 then the board of a school district or board of directors of a
6 public school academy may award a high school diploma to a pupil
7 who successfully completes ~~his or her~~ **the pupil's** personal
8 curriculum even if it does not meet the requirements of the
9 Michigan merit standard required under subsection (1) and section
10 1278a(1) (a). All of the following apply to a personal curriculum:

11 (a) The personal curriculum must be developed by a group that
12 includes at least the pupil, at least 1 of the pupil's parents or
13 the pupil's legal guardian, and a teacher described in this
14 subdivision or the pupil's high school counselor or another
15 designee qualified to act in a counseling role under section 1233
16 or 1233a selected by the high school principal. In addition, for a
17 pupil who receives special education services, a school
18 psychologist should also be included in this group. The teacher
19 included in the group developing the personal curriculum must be a
20 teacher who is currently teaching the pupil, who currently teaches
21 in or whose expertise is in a subject area being modified by the
22 personal curriculum, or who is determined by the principal to have
23 qualifications otherwise relevant to the group. This subdivision
24 does not require an in-person meeting of the group.

25 (b) The personal curriculum must do all of the following:

26 (i) Incorporate as much of the subject area content
27 expectations of the Michigan merit standard required under
28 subsection (1) and section 1278a(1) (a) as is practicable for the
29 pupil.



1 (ii) Establish measurable goals that the pupil must achieve
2 while enrolled in high school.

3 (iii) Provide a method to evaluate whether the pupil achieved
4 the goals described in subparagraph (ii).

5 (iv) Align with the pupil's educational development plan
6 developed under subsection (11).

7 (c) Before it takes effect, the personal curriculum must be
8 agreed to by the pupil's parent or legal guardian and by the
9 superintendent of the school district or chief executive of the
10 public school academy or ~~his or her~~ **the superintendent's or chief**
11 **executive's** designee.

12 (d) The pupil's parent or legal guardian shall communicate
13 with each of the pupil's teachers to monitor the pupil's progress
14 toward the goals contained in the pupil's personal curriculum.

15 (e) Revisions may be made in the personal curriculum if the
16 revisions are developed and agreed to in the same manner as the
17 original personal curriculum.

18 (f) The English language arts credit requirements of
19 subsection (1)(a) and the science credit requirements of subsection
20 (1)(b) are not subject to modification as part of a personal
21 curriculum under this subsection.

22 (g) The mathematics credit requirements of section
23 1278a(1)(a)(i) may be modified as part of a personal curriculum if
24 the pupil successfully completes at least 3-1/2 total credits of
25 the mathematics credits required under that section before
26 completing high school, including algebra I and geometry, and
27 successfully completes at least 1 mathematics credit during ~~his or~~
28 ~~her~~ **the pupil's** final 2 years of high school. The algebra II credit
29 required under that section may be modified as part of a personal



curriculum under this subsection if the pupil meets 1 or more of the following:

(i) Successfully completes the same content as 1 semester of algebra II, as determined by the department.

(ii) Elects to complete the same content as algebra II over 2 years, with a credit awarded for each of those 2 years, and successfully completes that content.

(iii) Enrolls in a formal career and technical education program or curriculum and in that program or curriculum successfully completes the same content as the algebra II benchmarks assessed on the department-prescribed state high school assessment, as determined by the department.

(iv) Successfully completes 1 semester of statistics, functions and data analysis, or technical mathematics.

(h) The social science credit requirements of section 1278a(1)(a)(ii) may be modified as part of a personal curriculum only if all of the following are met:

(i) The pupil has successfully completed 2 credits of the social science credits required under section 1278a(1), including the civics course described in section 1166(2).

(ii) The modification requires the pupil to complete 1 additional credit in English language arts, mathematics, or science or 1 additional credit in a language other than English, or requires the pupil to complete a formal career and technical education program. This additional credit must be in addition to the number of those credits otherwise required under subsection (1) and section 1278a(1) or under section 1278a(2).

(i) The health and physical education credit requirement under section 1278a(1)(a)(iii) may be modified as part of a personal



1 curriculum only if the modification requires the pupil to complete
2 1 additional credit in English language arts, mathematics, or
3 science or 1 additional credit in a language other than English, or
4 requires the pupil to complete a formal career and technical
5 education program. This additional credit must be in addition to
6 the number of those credits otherwise required under subsection (1)
7 and section 1278a(1) or under section 1278a(2).

8 (j) The visual arts, performing arts, or applied arts credit
9 requirement under section 1278a(1)(a)(iv) may be modified as part of
10 a personal curriculum only if the modification requires the pupil
11 to complete 1 additional credit in English language arts,
12 mathematics, or science or 1 additional credit in a language other
13 than English, or requires the pupil to complete a formal career and
14 technical education program. This additional credit must be in
15 addition to the number of those credits otherwise required under
16 subsection (1) and section 1278a(1) or under section 1278a(2).

17 (k) If the parent or legal guardian of a pupil requests as
18 part of the pupil's personal curriculum a modification of the
19 Michigan merit standard requirements that would not otherwise be
20 allowed under this section and demonstrates that the modification
21 is necessary because the pupil is a child with a disability, the
22 school district or public school academy may allow that additional
23 modification to the extent necessary because of the pupil's
24 disability if the group under subdivision (a) determines that the
25 modification is consistent with both the pupil's educational
26 development plan under subsection (11) and the pupil's
27 individualized education program. If the superintendent of public
28 instruction has reason to believe that a school district or a
29 public school academy is allowing modifications inconsistent with



1 the requirements of this subdivision, the superintendent of public
2 instruction shall monitor the school district or public school
3 academy to ensure that the school district's or public school
4 academy's policies, procedures, and practices are in compliance
5 with the requirements for additional modifications under this
6 subdivision. As used in this subdivision, "child with a disability"
7 means that term as defined in 20 USC 1401.

8 (l) If a pupil transfers to a school district or public school
9 academy from out of state or from a nonpublic school, the pupil's
10 parent or legal guardian may request, as part of the pupil's
11 personal curriculum, a modification of the Michigan merit standard
12 requirements that would not otherwise be allowed under this
13 section. The school district or public school academy may allow
14 this additional modification for a transfer pupil if all of the
15 following are met:

16 (i) The transfer pupil has successfully completed at least the
17 equivalent of 2 years of high school credit out of state or at a
18 nonpublic school. The school district or public school academy may
19 use appropriate assessment examinations to determine what credits,
20 if any, the pupil has earned out of state or at a nonpublic school
21 that may be used to satisfy the curricular requirements of the
22 Michigan merit standard and this subdivision.

23 (ii) The transfer pupil's personal curriculum incorporates as
24 much of the subject area content expectations of the Michigan merit
25 standard as is practicable for the pupil.

26 (iii) The transfer pupil's personal curriculum requires the
27 pupil to successfully complete at least 1 mathematics course during
28 ~~his or her~~ **the transfer pupil's** final year of high school
29 enrollment. In addition, if the transfer pupil is enrolled in the

1 school district or public school academy for at least 1 full school
2 year, both of the following apply:

3 (A) The transfer pupil's personal curriculum must require that
4 this mathematics course is at least algebra I.

5 (B) If the transfer pupil demonstrates that ~~he or she~~ **the**
6 **transfer pupil** has mastered the content of algebra I, the transfer
7 pupil's personal curriculum must require that this mathematics
8 course is a course normally taken after completing algebra I.

9 (iv) The transfer pupil's personal curriculum includes the
10 civics course described in section 1166(2).

11 (m) If a pupil is at least age 18 or is an emancipated minor,
12 the pupil may act on ~~his or her~~ **the pupil's** own behalf under this
13 subsection.

14 (n) This subsection does not apply to a pupil enrolled in a
15 high school that is designated as a specialty school under section
16 1278a(6) and that is exempt under that section from the English
17 language arts requirement under subsection (1)(a) and the social
18 science credit requirement under section 1278a(1)(a) *(ii)*.

19 (o) The department or a school district or public school
20 academy shall not limit or discourage the number of pupils with a
21 personal curriculum on any basis other than the best interests of
22 each individual pupil.

23 (p) A school district or public school academy annually shall
24 notify each of its pupils and a parent or legal guardian of each of
25 its pupils that all pupils are entitled to a personal curriculum
26 under this subsection. The annual notice must include an
27 explanation of what a personal curriculum is and state that if a
28 personal curriculum is requested, the public school or public
29 school academy will grant that request. The school district or



1 public school academy shall provide this annual notice to parents
2 and legal guardians by sending a written notice to each pupil's
3 home or by including the notice in a newsletter, student handbook,
4 or similar communication that is sent to a pupil's home, and also
5 shall post the notice on the school district's or public school
6 academy's website.

7 (6) If a pupil receives special education services, the
8 pupil's individualized education program, in accordance with the
9 individuals with disabilities education act, title VI of Public Law
10 91-230, must identify the appropriate course or courses of study
11 and identify the supports, accommodations, and modifications
12 necessary to allow the pupil to progress in the curricular
13 requirements of this section and section 1278a, or in a personal
14 curriculum as provided under subsection (5), and meet the
15 requirements for a high school diploma.

16 (7) The board of a school district or board of directors of a
17 public school academy that operates a high school shall ensure that
18 each pupil is offered the curriculum necessary for the pupil to
19 meet the curricular requirements of this section and section 1278a.
20 The board or board of directors may provide this curriculum by
21 providing the credits specified in this section and section 1278a,
22 by using alternative instructional delivery methods such as
23 alternative ~~course work~~, **coursework**, humanities course sequences,
24 career and technical education, industrial technology courses, or
25 vocational education, or by a combination of these. School
26 districts and public school academies that operate career and
27 technical education programs are encouraged to integrate the credit
28 requirements of this section and section 1278a into those programs.

29 (8) If the board of a school district or board of directors of

1 a public school academy wants its high school to be accredited
2 under section 1280, the board or board of directors shall ensure
3 that all elements of the curriculum required under this section and
4 section 1278a are made available to all affected pupils. If a
5 school district or public school academy does not offer all of the
6 required credits, the board of the school district or board of
7 directors of the public school academy shall ensure that the pupil
8 has access to the required credits by another means, such as
9 enrollment in a postsecondary course under the postsecondary
10 enrollment options act, 1996 PA 160, MCL 388.511 to 388.524;
11 enrollment in an online course; a cooperative arrangement with a
12 neighboring school district or with a public school academy;
13 **participation in a public innovative program under section 1278e;**
14 or granting approval under section 6(6) of the state school aid act
15 of 1979, MCL 388.1606, for the pupil to be counted in membership in
16 another school district.

17 (9) If a pupil is not successfully completing a credit
18 required for graduation under this section and section 1278a, or is
19 identified as being at risk of withdrawing from high school, then
20 the pupil's school district or public school academy shall notify
21 the pupil's parent or legal guardian or, if the pupil is at least
22 age 18 or is an emancipated minor, the pupil, of the availability
23 of tutoring or other supplemental educational support and
24 counseling services that may be available to the pupil under
25 existing state or federal programs, such as those programs or
26 services available under section 31a of the state school aid act of
27 1979, MCL 388.1631a, or under the no child left behind act of 2001,
28 Public Law 107-110, or every student succeeds act, Public Law 114-
29 95.



1 (10) To the extent required by the no child left behind act of
2 2001, Public Law 107-110, or every student succeeds act, Public Law
3 114-95, the board of a school district or public school academy
4 shall ensure that all components of the curricular requirements
5 under this section and section 1278a are taught by highly qualified
6 teachers. If a school district or public school academy
7 demonstrates to the department that the school district or public
8 school academy is unable to meet the requirements of this section
9 because the school district or public school academy is unable to
10 hire enough highly qualified teachers, the department shall work
11 with the school district or public school academy to develop a plan
12 to allow the school district or public school academy to hire
13 enough highly qualified teachers to meet the requirements of this
14 section.

15 (11) The board of a school district or board of directors of a
16 public school academy shall provide the opportunity for each pupil
17 to develop an educational development plan during grade 7, and
18 shall ensure that each pupil reviews ~~his or her~~ **the pupil's**
19 educational development plan during grade 8 and revises it as
20 appropriate before ~~he or she~~ **the pupil** begins high school. The
21 board of a school district or board of directors of a public school
22 academy shall also ensure that each pupil reviews and revises his
23 or her educational development plan as appropriate during each year
24 of high school. An educational development plan must be developed,
25 reviewed, and revised by the pupil under the supervision of the
26 pupil's school counselor or another designee qualified to act in a
27 counseling role under section 1233 or 1233a selected by the school
28 principal and must be based on high school readiness scores and a
29 career pathways program or similar career exploration program. An



1 educational development plan must be designed to assist pupils to
2 identify career development goals as they relate to academic
3 requirements. During the process of developing and reviewing a
4 pupil's educational development plan, the pupil must be advised
5 that many of the curricular requirements of this section and
6 section 1278a may be fulfilled through career and technical
7 education. In addition, during the process of developing and
8 reviewing an educational development plan, the pupil must be
9 provided with all of the following:

10 (a) Information on various types of careers and current and
11 projected job openings in this state and those jobs' actual and
12 projected wages.

13 (b) An opportunity to explore careers specific to a pupil's
14 interests and identify career pathways and goals for achieving
15 success in those careers, including, but not limited to, the level
16 and type of educational preparation necessary to accomplish those
17 goals.

18 (c) An opportunity to develop a talent portfolio. A talent
19 portfolio must be developed and revised throughout the
20 implementation of a pupil's educational development plan. A talent
21 portfolio must include, but is not limited to, a record of the
22 pupil's experiences, proficiencies, certifications, or
23 accomplishments that demonstrate talents or marketable skills. The
24 department, in conjunction with the department of labor and
25 economic opportunity, shall develop and make available to the
26 public schools model information materials that districts or public
27 school academies may use to comply with this subdivision.

28 (12) Except as otherwise provided in this subsection, if a
29 school district or public school academy is unable to implement all

1 of the curricular requirements of this section and section 1278a
2 for pupils entering grade 9 in 2007 or is unable to implement
3 another requirement of this section or section 1278a, the school
4 district or public school academy may apply to the department for
5 permission to phase in 1 or more of the requirements of this
6 section or section 1278a. To apply, the school district or public
7 school academy shall submit a proposed phase-in plan to the
8 department. The department shall approve a phase-in plan if the
9 department determines that the plan will result in the school
10 district or public school academy making satisfactory progress
11 toward full implementation of the requirements of this section and
12 section 1278a. If the department disapproves a proposed phase-in
13 plan, the department shall work with the school district or public
14 school academy to develop a satisfactory plan that may be approved.
15 This subsection does not apply to a high school that is designated
16 as a specialty school under section 1278a(6) and that is exempt
17 under that section from the English language arts requirement under
18 subsection (1)(a) and the social science credit requirement under
19 section 1278a(1)(a)(ii).

20 (13) This section and section 1278a do not prohibit a pupil
21 from satisfying or exceeding the credit requirements of the
22 Michigan merit standard under this section and section 1278a
23 through advanced studies such as accelerated course placement,
24 advanced placement, dual enrollment in a postsecondary institution,
25 or participation in the international baccalaureate program or an
26 early college/middle college program.

27 (14) Not later than April 1 of each year, the department shall
28 submit an annual report to the legislature that evaluates the
29 overall success of the curriculum required under this section and



1 section 1278a, the rigor and relevance of the ~~course work~~
2 **coursework** required by the curriculum, the ability of public
3 schools to implement the curriculum and the required ~~course work~~,
4 **coursework**, and the impact of the curriculum on pupil success, and
5 that details any activities the department has undertaken to
6 implement this section and section 1278a or to assist public
7 schools in implementing the requirements of this section and
8 section 1278a.

9 (15) For a public innovative program operated under section
10 1278e, the department may waive any of the requirements of this
11 section as the department determines necessary to enable the
12 operation of the public innovative program.

13 Sec. 1278e. (1) A primary district may elect to operate a
14 public innovative program under this section. A primary district
15 that elects to operate a public innovative program may offer
16 instruction to public innovative program pupils in grades K to 12
17 through alternative pedagogical methods as described in subsection
18 (7), and shall grant a high school diploma to a public innovative
19 program pupil who completes the public innovative program and
20 demonstrates academic competencies in the form and manner
21 prescribed under this section.

22 (2) A primary district shall enroll a pupil in a public
23 innovative program in accordance with the provisions of this
24 section. A pupil must not be enrolled in a public innovative
25 program offered as an option to a continuing existing program or
26 curriculum without the consent of the pupil's parent or legal
27 guardian.

28 (3) To provide a public innovative program under this section,
29 a provider must do the following:



1 (a) Draft an innovation plan to define the public innovative
2 program. The innovation plan must include the following:

3 (i) A description of the public innovative program and how the
4 public innovative program will ensure that pupils meet core
5 academic standards and, when applicable, the Michigan merit
6 curriculum. The description of the public innovative program
7 described in this section must also detail how the public
8 innovative program will better prepare pupils for postsecondary and
9 career options.

10 (ii) A detailed description of the public innovative program's
11 model, instructional approach, and intended outcomes, and the
12 population of pupils that the public innovative program seeks to
13 support.

14 (iii) A process for developing an individualized written
15 learning plan for each pupil.

16 (iv) A process for monitoring pupils' progress against the
17 written learning plan described in subparagraph (ii).

18 (v) A process for reporting the pupil's progress results to
19 the governing body of the public school in which the pupil is
20 enrolled and the pupil's parent or legal guardian at least
21 quarterly.

22 (vi) A description of how pupil safety and participation will
23 be monitored for pupils enrolled in the public innovative program.

24 (vii) A description of how the public innovative program will
25 support pupil acquisition of twenty-first-century skills such as
26 critical thinking, problem solving, communication, collaboration,
27 and creativity, and how the public innovative program will
28 determine pupil skill acquisition.

29 (b) Produce a statement of commitment from the board of a



1 primary district outlining the board's vision for the public
2 innovative program and a board resolution approving the submitted
3 innovation plan.

4 (c) If applicable, obtain a statement of commitment from the
5 teachers' union that represents the public school or school
6 district in which the public innovative program will be implemented
7 outlining support for the public innovative program.

8 (d) Subject to subsection (9), apply to the department in a
9 form and manner determined by the department. An application to
10 operate a public innovative program under this section must be
11 provided to the intermediate school district in which the public
12 innovative program will be located, and must include at least all
13 of the following:

14 (i) A copy of the innovation plan described in subdivision (a).

15 (ii) The projected number of pupils to be enrolled in the
16 public innovative program.

17 (iii) The anticipated start date of the public innovative
18 program.

19 (e) Assign to each pupil an innovation coach and a teacher
20 content specialist. An innovation coach or teacher content
21 specialist must be employed by the primary district, or, if any
22 programming offered by an innovation partner is used, the
23 programming may be provided by an education management organization
24 that is partnered with the primary district or based upon an
25 innovation partner agreement. Before an individual is assigned to
26 be an innovation coach or teacher content specialist for a pupil,
27 the primary district must comply with sections 1230 to 1230g, as
28 applicable, with respect to that individual. An innovation coach
29 described in this subdivision must be treated in the same manner as

1 other individuals working for the primary district.

2 (f) For a public school academy, obtain a statement of support
3 from the public school academy's authorizing body.

4 (4) For a pupil enrolled in a public innovative program, the
5 pupil's primary district shall use the foundation allowance or per-
6 pupil funds calculated under section 20 of the state school aid act
7 of 1979, MCL 388.1620, to pay for the expenses associated with the
8 public innovative program.

9 (5) A public innovative program pupil has the same rights and
10 access to technology in the pupil's primary district's school
11 facilities as all other pupils enrolled in the pupil's primary
12 district.

13 (6) If a pupil successfully completes a course as part of a
14 public innovative program, as determined by the pupil's primary
15 district, the pupil's primary district shall grant appropriate
16 academic credit for completion of the course and shall count that
17 credit toward completion of graduation and subject area
18 requirements.

19 (7) A public innovative program may offer instruction to
20 pupils in grades K to 12 through a variety of pedagogical methods,
21 including, but not limited to, the following:

22 (a) Career and technical education.

23 (b) Work-based learning programs.

24 (c) Internships.

25 (d) Apprenticeships.

26 (e) Job shadows.

27 (f) Extended learning opportunities.

28 (g) Competency-based education.

29 (8) By not later than December 31 of each year, a primary



1 district shall provide a report to the department in the form and
2 manner determined by the department. The report described in this
3 subsection must contain all of the following information:

4 (a) The number and identity of pupils enrolled in the public
5 innovative program by state identification number.

6 (b) The number of pupils who remain in the public innovative
7 program from year to year.

8 (c) Pupil outcomes for pupils enrolled in a public innovative
9 program, including academic progress, credential attainment,
10 graduation rates, and postsecondary enrollment or employment, as
11 applicable.

12 (d) A description of how applicable statutory and regulatory
13 exemptions were used in the implementation of the public innovative
14 program.

15 (e) To the extent practicable, a comparison of outcomes for
16 pupils enrolled in the public innovative program and similarly
17 situated pupils enrolled in traditional instructional programs
18 within the primary district.

19 (9) By not later than 60 days after receiving an application
20 under subsection (3)(d), the department shall review the
21 application and issue any statutory waivers that the department
22 determines are necessary for the public innovative program to
23 operate as described in the application. A determination by the
24 department that no waiver is necessary creates a rebuttable
25 presumption that a public innovative program is operating in
26 accordance with its innovation plan and is meeting the requirements
27 of this section. Such a determination is binding on any pupil
28 accounting audit decisions. Not later than 60 days after receiving
29 an application under subsection (3)(d), and subject to subsection



1 (10), the department shall approve the public innovative program
2 designation if the innovation plan meets the requirements of
3 subsection (3) (a), the application has been approved by the primary
4 district through a board resolution under subsection (3) (b), a
5 statement of commitment from a teachers' union under subsection
6 (3) (c) has been received, if applicable, and a statement of support
7 from a public school academy's authorizing body under subsection
8 (3) (f) has been received, if applicable.

9 (10) An initial approval by the department under subsection
10 (9) for a primary district to operate a public innovative program
11 is valid for 4 years. Following expiration of the public innovative
12 program's approval under this subsection, the public innovative
13 program shall apply for renewed approval to continue operating. An
14 application for renewed approval must include all the criteria
15 required under subsection (3) (d). A renewed approval by the
16 department under this subsection to operate a public innovative
17 program is valid for 4 years.

18 (11) If the department determines that a public innovative
19 program is not meeting the requirements and goals of the innovation
20 plan submitted under subsection (3) (a), that the public innovative
21 program has violated state or federal law, or that the public
22 innovative program has shown declining academic progress for pupils
23 enrolled in the public innovative program, the department shall
24 enter into a corrective action plan with the primary district. If
25 the department determines that a primary district has failed to
26 adhere to a corrective action plan implemented under this
27 subsection, the department may revoke the primary district's
28 approval to operate a public innovative program under this section
29 following a public meeting by the board of the primary district



1 explaining why the primary district has failed to implement the
2 corrective action plan. A representative from the department must
3 be present at a public meeting by a primary district board
4 described in this subsection.

5 (12) If a primary district's approval to operate a public
6 innovative program is revoked under subsection (11), that primary
7 district may not apply to operate a public innovative program for 3
8 school years following the approval's revocation. Any subsequent
9 applications by that primary district to operate a public
10 innovative program must adhere to the same requirements as the
11 initial application.

12 (13) By not later than December 31 of each year, the
13 department shall submit a report to the chairs of the senate and
14 house standing committees responsible for education legislation
15 that contains at least all of the following information:

16 (a) A list of the public innovative programs currently
17 operating and a description of each program.

18 (b) The intended outcomes of each public innovative program
19 currently operating.

20 (c) The target population of pupils and actual population of
21 pupils for each public innovative program currently operating.

22 (d) The actual outcomes of each public innovative program
23 currently operating.

24 (e) The level of participation in each public innovative
25 program currently operating.

26 (f) A comparison of the performance of public innovative
27 program pupils to similarly situated pupils not participating in
28 public innovative programs.

29 (g) A complete list of any statutory waivers issued under

1 subsection (9), including an explanation of why those waivers were
2 necessary to enable the public innovative program to operate as
3 designed under the innovation plan submitted under subsection
4 (3)(a) and how those waivers are intended to be used, or if no
5 waivers were issued for a public innovative program, an explanation
6 of why no waivers were necessary.

7 (h) A list of any statutory obstacles to innovation plans
8 submitted under subsection (3)(a) for which the department did not
9 have the authority to issue a waiver.

10 (14) A primary district shall maintain a transcript or other
11 record of credits earned, competencies demonstrated, standards
12 completed, and progress toward graduation requirements in a form
13 and manner that allows a receiving public school to determine a
14 pupil's placement and progress toward graduation if the pupil
15 transfers into a public school from a public innovative program.

16 (15) As used in this section:

17 (a) "Education management organization" means a private
18 provider that operates 1 or more educational programs with 1 or
19 more districts.

20 (b) "Extended learning opportunity" means a learning option
21 that occurs outside of school, enables learners to gain knowledge
22 and skills outside of a traditional classroom setting, and is often
23 community-based with partner engagement. An extended learning
24 opportunity includes rigorous, authentic problem-solving and
25 inquiry that connects with learners' interests and passions. An
26 extended learning opportunity may be learner driven, and designed
27 by the learner and credentialed by the teacher.

28 (c) "Innovation coach" means an adult employed by a primary
29 district or innovation partner available to meet in person or

1 through audio or video conferencing with assigned pupils, as
2 needed, to do all of the following:

3 (i) Ensure the conditions of the pupil's written learning plan
4 are being met.

5 (ii) Conduct social interventions.

6 (iii) Proctor final examinations.

7 (iv) Provide academic and social support to pupils enrolled in
8 the district's innovative program.

9 (d) "Innovation partner" means any entity working in a formal
10 partnership agreement with a primary district to provide extended
11 learning opportunities.

12 (e) "Primary district" means a school district, intermediate
13 school district, or public school academy that enrolls a public
14 innovative program pupil and reports the pupil for pupil membership
15 purposes.

16 (f) "Public innovative program" means a program with
17 approaches to learning that tailor instruction to meet the unique
18 needs, strengths, interests, and learning styles of each pupil,
19 moving away from a 1-size-fits-all approach.

20 (g) "Public innovative program pupil" means a pupil enrolled
21 in a public innovative program.

22 (h) "Teacher content specialist" means a teacher who holds a
23 valid Michigan teaching certificate, has a personnel identification
24 code, and, if applicable, is endorsed in the subject area and grade
25 of the course content or credits earned or competencies to be
26 demonstrated, and is responsible for providing instructional
27 design, determining instructional methods for each pupil,
28 diagnosing learning needs, assessing pupil learning, prescribing
29 intervention strategies, reporting outcomes, and evaluating the



1 effects of instruction and support strategies.

2 (i) "Written learning plan" means a written plan developed in
3 conjunction with the pupil and the pupil's parent or legal
4 guardian, innovation coach, and school counselor or administrator
5 that includes all of the following:

6 (i) The written learning plan's start and end dates.

7 (ii) Courses to be taken or credits to be earned or grouping of
8 Michigan standards for each course or competencies to be
9 demonstrated.

10 (iii) The pupil's teacher content specialist for each course or
11 credits to be earned or competencies to be demonstrated or grouping
12 of Michigan standards for each course.

13 (iv) The name and contact information of the pupil's learning
14 coach.

15 Sec. 1284a. (1) ~~Not later than July 1, 2008, an~~ **An**
16 intermediate school district, in cooperation with its constituent
17 districts, shall adopt a common school calendar to apply to all of
18 its constituent districts and to its intermediate school district
19 programs. The intermediate school district shall post the common
20 school calendar on its website. The common school calendar ~~shall~~
21 **must** meet all of the following:

22 (a) ~~Shall~~ **Must** be in compliance with sections 1284 and 1284b.

23 (b) ~~Shall~~ **Must** identify the dates for each school year when
24 school will not be in session for a winter holiday break and a
25 spring break. The common school calendar shall identify these dates
26 specifically for at least the next 5 school years, but may describe
27 these dates more generally for school years thereafter as long as
28 the dates may be readily determined.

29 (2) ~~Beginning with the 2008-2009 school year, except~~ **Except** as



1 otherwise provided in this section, the board of each constituent
2 district and the intermediate school board shall ensure that its
3 school calendar complies with the common school calendar adopted
4 under subsection (1).

5 (3) In addition to the requirements under subsection (1), a
6 common school calendar adopted under subsection (1) is encouraged
7 to identify common dates for professional development days.

8 (4) If a collective bargaining agreement that provides a
9 complete school calendar is in effect for employees of a school
10 district or intermediate school district as of the effective date
11 of this section, and if that school calendar is not in compliance
12 with the common school calendar adopted under subsection (1), then
13 subsection (2) does not apply to that school district or
14 intermediate school district until after the expiration of that
15 collective bargaining agreement.

16 (5) If as of the effective date of this section an
17 intermediate school district or school district is operating a
18 year-round school or program or is operating a school that is an
19 international baccalaureate academy that provides 1,160 hours of
20 pupil instruction per school year, then subsection (2) does not
21 apply to that school or program. If after the effective date of
22 this section an intermediate school district or school district
23 begins operating a year-round school or program, the intermediate
24 school district or school district may apply to the superintendent
25 of public instruction for a waiver from the requirements of
26 subsection (2) for that school or program. The application ~~shall~~
27 **must** be in writing in the form and manner prescribed by the
28 department and ~~shall~~ **must** provide justification for the school or
29 program to operate on a calendar that differs from the common

1 school calendar adopted under subsection (1). Upon application, if
2 the superintendent of public instruction determines that a school
3 or program is a bona fide year-round school or program established
4 for educational reasons and that there is sufficient justification
5 for the school or program to operate on a calendar that differs
6 from the common school calendar adopted under subsection (1), the
7 superintendent of public instruction shall grant the waiver. The
8 superintendent of public instruction shall establish standards for
9 determining a bona fide year-round school or program for the
10 purposes of this subsection.

11 (6) If an intermediate school district or school district is
12 operating or begins operating a school or program on a trimester
13 schedule, the intermediate school district or school district may
14 apply to the superintendent of public instruction for a waiver from
15 the requirements of subsection (2) for that school or program. The
16 application ~~shall~~**must** be in writing in the form and manner
17 prescribed by the department and ~~shall~~**must** provide justification
18 for the school or program to operate on a calendar that differs
19 from the common school calendar adopted under subsection (1). Upon
20 application, if the superintendent of public instruction determines
21 that a school or program is operating on a bona fide trimester
22 schedule established for educational reasons and that there is
23 sufficient justification for the school or program to operate on a
24 calendar that differs from the common school calendar adopted under
25 subsection (1), the superintendent of public instruction shall
26 grant the waiver. The superintendent of public instruction shall
27 establish standards for determining a bona fide trimester schedule
28 for the purposes of this subsection.

29 (7) This section does not apply to a public school that



operates all of grades 6 to 12 at a single site, that aligns its high school curriculum with advanced placement courses as the capstone of the curriculum, and that ends its second academic semester concurrently with the end of the advanced placement examination period.

(8) In addition to the other exceptions under this section, the superintendent of public instruction may grant a waiver from a requirement under this section for a school district that applies for the waiver in writing in the form and manner prescribed by the superintendent of public instruction and provides sufficient justification for the waiver, as determined by the superintendent of public instruction.

(9) For a public innovative program operated under section 1278e, the department may waive any of the requirements of this section as the department determines necessary to enable the operation of the public innovative program.

(10) ~~(9)~~As used in this section:

(a) "Board" means the board of a school district or board of directors of a public school academy.

(b) "Constituent district" means a constituent district of the intermediate school district or a public school academy that is located within the boundaries of the intermediate school district and that receives services from the intermediate school district.

(c) "School district" means a school district or a public school academy.

Enacting section 1. This amendatory act does not take effect unless House Bill No. 5984 of the 103rd Legislature is enacted into law.

